

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 10, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Scott Roybal (arriving at 6:26 p.m.), Tom Segrave and Jeff White. Absent: Dr. Mark Rinne. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn and pursuant to support received by Dr. Aldrich and Mr. Johnson, item #23(f) was removed from the Consent Agenda. Upon request by Mr. Laybourn and pursuant to support received by Dr. Aldrich and Mr. Johnson, item #25(a) was removed from the Consent Agenda. Upon request by Mr. Laybourn and pursuant to support received by Dr. Aldrich and Mr. Johnson, item #25(b) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on September 26, 2022. Motion (per Consent Agenda) carried.

Mayor Collins opened a Public Hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 1,280 acres of land situated in a portion of Sections 14, 23 and 24, Township 13 North, Range 67 West, and Section 19, Township 13 North, Range 66 West, Laramie County, WY (located between Clear Creek Parkway and South Greeley Highway, south of College Drive). Public comment was made by: Mike Raneri, Rick Poach, Donn Edmunds, Jennifer Rojas, Bruce Asay, Marla Richards and Susan Edgerton. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a Public Hearing for a proposed trade of real property owned by the City of Cheyenne, described as a tract of land situated in the northeast quarter of Section 23, Township 13 North, Range 68 West of the 6th P.M., Laramie County, Wyoming, consisting of 20.84 acres with an appraised value of \$52,000.00, to Mark Eisele for real property owned by Mark Eisele, described as a tract of land situated in the southwest quarter of Section 14, Township 13 North, Range 68 West of the 6th P.M., Laramie County, Wyoming, consisting of 13.85 acres with an appraised value of \$27,000.00. Comments were made by the following members of the

governing body: Dr. Aldrich and Mr. White. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE – 3rd READING – Amending Section 10.12.160, Authority to Impound Illegally Parked Vehicles, and Section 10.12.170, Immobilization, of Title 10, Vehicles and Traffic, modifying time period for vehicle impoundment after immobilization. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Roybal. Mr. Cook moved to amend by substitute dated October 4, 2022, seconded by Mr. White. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Segrave voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Segrave voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Johnson and Mr. Segrave. (#4467)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land north of Pershing Boulevard, east of College Drive. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Ben Hornok, TC Solutions, Project Manager. (#4468)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from Swan Ranch PUD Planned Unit Development (Ordinance #3989) to CB Community Business for land located north of High Plains Road, west of I-25. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mayor Collins. (#4469)

ORDINANCE – 2nd READING – Amending Section 9.08.020, Annoying, Obscene or Threatening Telephone Calls, of Chapter 9.08, Offenses Against Public Peace and Decency, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming, modifying the elements of the offense of annoying, obscene or threatening telephone calls. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Dr. Aldrich. Mr. White moved to amend by substitute dated October 3, 2022, seconded by Dr. Aldrich. Mr. White moved to amend the substitute dated October 3, 2022, by reinserting the stricken language making it a municipal offense under 9.08.020 and prohibit the use of a telephone or other electronic device to attempt to extort money or other thing of value from another person, seconded by Dr. Aldrich. Motion to amend the substitute carried. Voting “yes” – all members of the governing body present. Motion to amend by substitute as amended carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute as amended carried. Voting “yes” – all members of the governing body present. Public comment was made by: Donn Edmunds, Marla Richards and Ben Hornok. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel and Mr. Johnson.

ORDINANCE –1st READING – Creating Section 9.04.070, Interference with Emergency Calls; Interference with Emergency Reporting System, of Chapter 9.04, Offenses by or Against Public Officers and Government, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending Section 2.08.010, Appointment and Term-Removal-Vacancy, of Chapter 2.08, City Officers and Employees Generally, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to eliminate an obsolete position and update a provision governing appointment of Judges – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located between Clear Creek Parkway and South Greeley Highway, south of College Drive – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County CB Community Business and County A-2 Agricultural to CB Community Business, AG Agricultural, and LI Light Industrial for land located between Clear Creek Parkway and South Greeley Highway, south of College Drive – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the acceptance of a FY21 Building Resilient Infrastructure and Communities Grant for scoping and design work for the Cheyenne Clear Creek Detention Storage Facility. Motion (per Consent Agenda) carried. (RES. #6275/CONT. #7608)

[CA] RESOLUTION – Authorizing the acceptance of a FY21 Building Resilient Infrastructure and Communities grant for scoping and design work for the Cheyenne Crow Creek 19th Street Crossing Improvement Project. Motion (per Consent Agenda) carried. (RES. #6276/CONT. #7609)

[CA] RESOLUTION – Certifying Planning Commission action amending the Cheyenne Area Future Land Use & Transportation Map of Connect 2045: Update to the Master Transportation and Future Land Use Plan of PlanCheyenne, amending the land use category and transportation network for property generally located between I-25 and South Greeley Highway, south of College Drive – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Supporting the conversion of a portion of Dutcher Ball Fields, located at 4200 Converse Avenue, Cheyenne, Wyoming from Perpetual Public Outdoor Recreation Use and committing to purchase and encumber three replacement properties to be deed restricted for Perpetual Public Outdoor Recreation Use pursuant to the requirements set forth in the Land and Water Conservation Fund Act – referred to Public Services Committee. (Sponsor – Mr. Esquibel)

[CA] RESOLUTION – Authorizing the formation of the Wise Water Action Committee to develop a water conservation roadmap specific to Cheyenne and supported by City decision makers and community stakeholders – referred to Public Services Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Approving Water and Sanitary Sewer Services, by Outside User Water and Sanitary Sewer Services Agreement, for Wyoming King Gold Mining Company, Inc., for all Section 36, T14N., R70W of the 6th P.M., Laramie County, Wyoming – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Frontier Gardens 4th Filing, a replat of all of Lots 3 and 4, Block 17 and all of Lots 1 and 2, Block 16 and all of Moran Avenue adjacent thereto, Frontier Gardens 3rd Filing, City of Cheyenne, Laramie County, Wyoming (located north of the intersection of Dell Range Boulevard and Moran Avenue) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the Mayor to execute all necessary documents related to the transfer, purchase and sale of a specified portion of the property located at 1720 Cleveland Avenue – referred to Finance Committee. (Sponsor – Mr. White)

[CA] Agreement between the City of Cheyenne Transit Program and the Wyoming Department of Health, Aging Division, to provide transportation support services to persons 60 years or older under the Title III-B Program Grant for FY 23 (Title III-B Division of Aging Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$87,399.00). (#7610)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and Y2 Consultants, LLC, for the Van Buren Avenue Corridor Study (MPO Federal Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$103,190.00). (#7611)

[CA] Telecommunications Right-of-Way License and Use Agreement between the City of Cheyenne and Uniti Dark Fiber LLC (Revenue to the City). Motion (per Consent Agenda) carried. (#7612)

Agreement between the City of Cheyenne and Cheyenne Rail Hub, LLC, to provide for the temporary storage of railcars owned by the City of Cheyenne (2017 Specific Purpose Option Tax Fund and EDA No. 05-79-06167 Cheyenne Railcar Project Grant). Mr. White moved to approve in an amount not to exceed \$54,750.00, seconded by Mr. Esquibel. Dr. Aldrich moved to postpone to October 24, 2022, seconded by Mr. Laybourn. Motion to postpone failed. Voting “yes” – Dr. Aldrich and Mr. Laybourn. Voting “no” – Mayor Collins, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Roybal, Mr. Segrave and Mr. White. Motion to approve carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich and Mr. Laybourn voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Laybourn and Mr. Segrave. (#7613)

Agreement between the City of Cheyenne and Mark Eisele, King Ranch Company, LP, for the purchase, sale and exchange of lands. Mr. White moved to approve, seconded by Mr. Johnson. Mr. White moved to amend by substitute dated October 3, 2022, seconded by Mr. Johnson. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mayor Collins. (#7614)

Professional Services Agreement between the City of Cheyenne and Quandel Consultants for the Reed Avenue Rail Corridor Scoping and Railroad Negotiation Project (2017-2021 Specific Purpose Option Tax Fund). Mr. White moved to approve in an amount not to exceed \$161,605.00, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mr. Laybourn. (#7615)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and the Laramie County Community Juvenile Services Joint Powers Board for Community Services/Case Management Services provided to the Municipal Court as sentencing alternatives for juveniles (Revenue to the City) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Wyoming Department of Transportation (WYDOT) for a Wyoming Rural Public Transportation Grant to assist in providing a local match for operating funds for the Transit Program for Fiscal Year 2023 (Revenue to the City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and AVI P.C., for the design of the Powderhouse Road and Carlson Street Intersection Project (2018-2022 Optional 1% Tax Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Roadway Asset Services LLC., for the Pavement Condition Survey and Rehabilitation Strategy Project (2018-2022 Optional 1% Tax Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6612 between the City of Cheyenne, the Nature Conservancy, and Larimer County, Colorado, for the cooperative management of 1,800 acres of land (known generally as the Laramie Foothill Red Mountain Ranch-Wyoming, also known as the Big Hole). Motion (per Consent Agenda) carried. (#6612)

Consideration of Bid #E-2-23 for one (1) new 2022-2024 patch truck for the City of Cheyenne Street & Alley Division (2019-2022 1% Specific Purpose Option Tax Fund). Mr. White moved to accept the bid from Floyd’s Truck Center, Cheyenne, in an amount not to exceed \$326,499.15, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mr. Cook and Mr. Laybourn.

Consideration of Bid #E-4-23 for ice control product for the City of Cheyenne Street & Alley Division (2019-2022 1% Specific Purpose Option Tax Fund). Mr. White moved to accept the bid from Desert Mountain Corp., Riverton, WY, in an amount not to exceed \$891,000.00, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Laybourn.

[CA] Consideration of Bid #E-5-23 for bulk fertilizer application for the City of Cheyenne Parks Division (2019-2022 1% Specific Purpose Option Tax Fund, Recreation Fund & General Fund). Motion (per Consent Agenda) carried (accepted bid from AgFinity Inc., Brighton, CO, in an amount not to exceed \$39,160.00).

[CA] Consideration of Bid #S-2-23 for an agreement between the City of Cheyenne and Judge Netting Mountain West for the Happy Jack Landfill Litter Fence Repair Project (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Judge Netting Mountain West, Syracuse, UT, in an amount not to exceed \$39,037.00). (#7616)

Report of Core Development Incentivization Program activities, park fees, and public safety fees for Fiscal Year 2021. Mr. Segrave moved to acknowledge receipt of the report, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

No comments were made on the Voucher Report as presented.

Announcement was made that a Calcutta, benefitting the Make-A-Wish Foundation, will be held Friday, November 11, 2022, beginning at 5:30 p.m. at Red Lion, 204 W. Fox Farm Rd., Cheyenne, Wyoming.

Public comment was made by Donn Edmunds, Rick Poach, Susan Edgerton, Billy Richards, Sarah Meyer, Marilyn Burden and Marla Richards under other business.

The following members of the governing body made comments under other business: Dr. Aldrich, Mayor Collins and Mr. Johnson.

Mr. Roybal moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(x), seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: City Attorney, City Clerk, Fire Chief, Mayor’s Chief of Staff and Deputy City Attorney. (Clerk’s Note: executive session convened at 8:02 p.m.)

There being no further business to come before the governing body, the meeting was officially adjourned at 8:26 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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